

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kaitlin Campbell	Team: Squad #13	CCRB Case #: 201705407	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 06/24/2017 7:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/24/2018	Precinct: 81		
Date/Time CV Reported Sun, 06/25/2017 11:15 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 07/03/2017 12:25 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Joel Rodriguez	16835	955399	081 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Darren Mcfadzean	28772	957839	081 PCT
2. POF Taquana Stanford	31968	955528	081 PCT
3. POM Anthony Herring	22277	958694	081 PCT
4. POF Shania Roach	22048	959936	081 PCT
5. POF Trinesha Alford	14297	957322	081 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Joel Rodriguez	Abuse: Police Officer Joel Rodriguez threatened to arrest § 87(2)(b)	A . Unsubstantiated

Case Summary

On June 25, 2017, § 87(2)(b) called the NYPD Internal Affairs Bureau (IAB) and filed this complaint (original log #17-24304), a spinoff of which (log #2017-24703) was forwarded to the CCRB on July 3, 2017.

On June 24, 2017, at approximately 3:00 p.m., § 87(2)(b) was at his mother's house, at § 87(2)(b) when § 87(2)(b) called him and said people were breaking into his house, at § 87(2)(b) § 87(2)(b) who had seen the people trying to break in from twelve houses down, walked to § 87(2)(b) § 87(2)(b) called 911 to report the break-in, and walked to § 87(2)(b) arriving thirty minutes later. When § 87(2)(b) arrived, there were about ten uniformed police officers and four men there. The men were claiming to be owners of the house. § 87(2)(b) approached four uniformed police officers—among them Police Officers Joel Rodriguez and Darren McFadzean of the 81st Precinct—and asked them to arrest the men. The officers told § 87(2)(b) they could not arrest the men and that they would have to argue ownership of the property in housing court. § 87(2)(b) sat down on the stoop. PO Rodriguez told § 87(2)(b) he “did not want to do that” because “[the civil matter] could get criminal.” § 87(2)(b) stood up and stepped away. PO Rodriguez told § 87(2)(b) that if he went inside § 87(2)(b) he would be arrested (**Allegation A**). § 87(2)(b) was not summonsed or arrested.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b)
- On October 24, 2017, a FOIL request was submitted to determine whether a Notice of Claim was filed. The response will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- Since 2014, § 87(2)(b) has filed five prior CCRB complaints. § 87(2)(b)
- This is the first CCRB complaint filed against PO Rodriguez.

Findings and Recommendations

Allegation A—Abuse of Authority: Police Officer Joel Rodriguez threatened to arrest § 87(2)(b)

§ 87(2)(b) said PO Rodriguez told him he could be arrested if he went inside § 87(2)(b) § 87(2)(b) claimed he owned § 87(2)(b) Aside from a picture of a letter sent to § 87(2)(b) by the DMV listing his address as § 87(2)(b) § 87(2)(b) did

not provide proof that he owned or was the tenant of § 87(2)(b) (Board Review 01). According to NYCityMap and LexisNexis, § 87(2)(b) has been owned by § 87(2)(b) since 2014 and was previously owned by § 87(2)(b) from 1989 to 2014 (Board Review 02)(Board Review 03). § 87(2)(g)

Before § 87(2)(b) arrived, § 87(2)(b) said he saw the four men show officers “fake paperwork” to say they owned the house. § 87(2)(b) told the officers the “real owner” of the house was on his way, referring to § 87(2)(b). § 87(2)(b) said that when § 87(2)(b) arrived he tried to tell the officers he owned the house, and showed the officers pictures he took of mail that had been delivered to him at § 87(2)(b) and furniture of his that had been inside § 87(2)(b) before it had been “thrown out by [the men].” § 87(2)(b) said a black female officer told § 87(2)(b) he could be arrested if he went inside § 87(2)(b).

Both PO Rodriguez and PO McFadzean said that when they arrived to § 87(2)(b) two men—who they both could not describe any further—and § 87(2)(b) were arguing about who owned § 87(2)(b). Both officers said the two men had called 911 to report that § 87(2)(b) was trying to break in. The two men showed the officers documents of ownership and § 87(2)(b) did not. Both officers said PO Rodriguez advised the men and § 87(2)(b) to argue for ownership in housing court. PO Rodriguez said he told the two men that if § 87(2)(b) tried to break in they should call 911 and § 87(2)(b) could be arrested. PO McFadzean said PO Rodriguez told § 87(2)(b) that it was unlawful for him to be on the property and that he would need to argue for ownership in housing court. Neither officer remembered § 87(2)(b) sitting on the stoop.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Squad: 13

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date